

May 2, 2017

VIA ELECTRONIC FILING

Ms. Rachel E. Dickon
Assistant Secretary
Federal Maritime Commission
800 North Capitol Street, N.W.
Room 1046
Washington, D.C. 20573

Re: Pro Transport v. Seaboard Marine, FMC Docket No. 16-12

Dear Ms. Dickon:

The parties to the above-captioned docket are writing jointly to provide the Commission with further information regarding the status of the dispute which led to the filing of the complaint in that docket.

As noted in the pleadings filed in Docket No. 16-12, the parties were engaged in related litigation in State court in Florida prior to the filing of the complaint in Docket No. 16-12. During the week of April 24, the parties went to mediation in the state court litigation, and were able to reach an agreement resolving their underlying dispute. Before they could communicate the fact of this settlement to the administrative law judge, the judge (without knowledge of the settlement) issued an order dismissing the complaint on April 26, 2017.

Because the parties have settled their dispute, neither of them intends to file exceptions to the administrative law judge's order dismissing the complaint.

While the complaint was not dismissed pursuant to a settlement, the parties would have sought dismissal on the grounds of settlement had the administrative law judge not dismissed the complaint on other grounds. Moreover, if the Commission were to exercise its discretion to review the order of dismissal and remand the matter to the administrative law judge, the parties would file a joint motion to dismiss on the basis of their settlement.

In light of the foregoing and the Commission's strong policy favoring settlement, the parties believe that Commission review of the order of dismissal is unnecessary and would be an

inefficient use of Commission resources. Accordingly, the parties respectfully request that the Commission not exercise its authority to review the order of dismissal.

Respectfully submitted,



Michael Shelley
Counsel for Complainants



Wayne Rohde
Counsel for Respondents